

The Australian Government Department of Agriculture, Fisheries and Forestry has created this guideline to assist those wishing to export non-prescribed goods.

This guideline sets out what constitutes a non-prescribed good and how to determine if a particular product is a prescribed or non-prescribed good for the purpose of exporting from Australia.

This guideline provides information and instructions for Australian businesses wanting to determine if their product is deemed to be non-prescribed under export legislation. Exporters will need to read this guideline to understand requirements for export. Exporters should also refer to the department's [Manual of Importing Country Requirements \(Micor\)](#). Micor sets out the known requirements that exporters and the department must meet for products and commodities to be accepted for import into specific overseas countries

## Legislative overview

Australia's export control laws allow the Australian Government to regulate the export of goods. These laws support Australia's reputation as a reliable, high-quality source of exports. This maintains and improves export opportunities for Australian agricultural and food products.

Since March 2021, Australia's agricultural, fishery and forestry exports have been regulated under the Export Control Act 2020 (Act) and the Export Control Rules.

The Act defines prescribed goods. Prescribed goods are goods that are regulated by the Act and the Rules. The Rules list which goods are prescribed goods. All other goods are non-prescribed goods (also referred to as NPGs).

Examples of prescribed goods are:

- milk and milk products
- fish and fish products
- plants and plant products
- eggs and egg products
- meat and meat products
- wild game meat and wild game meat products
- rabbit and ratite meat and rabbit and ratite meat products
- poultry meat and poultry meat products
- organic goods
- live animals.

The Export Control Rules 2021 set out the list of legislative requirements that must be met by an exporter before prescribed goods can be exported. A separate Export Control Rule exists for each type of prescribed good (for example, the Export Control (Meat and Meat Products) Rules 2021). These specific commodity Rules set out the specifications to be used when determining if a particular product should be deemed as a prescribed good under each commodity type.

Products which do not meet the criteria under the Export Control Rules 2021 are classified by the department as non-prescribed goods. There are no legislative requirements for non-prescribed products to be exported from Australia. This means, among other things, they do not require an export permit under the legislation or any official Australian Government certification from the department. However, there may be requirements of the importing country which need to be met. Under each of the commodity-specific Rules, detailed clauses are used to assess whether products which are very similar to prescribed goods are deemed to be non-prescribed goods. More information is outlined in the Commodity-specific details section of this guideline.

Non-prescribed goods are not subject to most of the regulatory controls in the Act. If an importing country requires certification for non-prescribed goods, exporters may apply for a government certificate. The main types of non-prescribed goods are:

- processed foods
- wool
- animal feed and pet food
- animal by-products
- honey.

## **Milk and milk products**

Milk and milk products derived from a bovine animal and are intended to be exported as food are prescribed. However, many dairy products are considered as non-prescribed goods, for example:

- ice cream
- cheesecakes, Bavarian desserts and similar desserts
- colostrum
- milk or milk products encased in pastry or a fruit or vegetable product
- milk products where milk or milk products are not the major component
- milk or milk products obtained from an animal other than a bovine animal
- milk or milk products that are animal food or pharmaceutical material
- liquid milk products exported in a consignment of not more than 10 litres
- milk or milk products exported in a consignment of not more than 10 kilograms
- milk or milk products in the form of a tablet or capsule
- milk or milk products [for export to New Zealand](#).

## **Fish and fish products**

Fish and fish products intended to be exported as food are prescribed where fish is the major component by weight or volume. Fish includes aquatic vertebrates and aquatic invertebrates but excludes mammals and birds.

Fish and fish products that are considered non-prescribed goods include:

- empty shells
- products where fish or fish products are not the major component, such as squid ink pasta, dips containing fish or lobster infused oils
- [fish or fish products](#) in the form of a tablet or capsule, such as fish oil capsules
- fish or fish products that are for use as animal food or pharmaceutical material
- liquid fish and liquid fish products exported in a consignment of not more than 10 litres
- dried fish and dried fish products (other than dried abalone) exported in a consignment of not more than 2 kilograms
- fish or fish products of any other kind (other than dried abalone) exported in a consignment of not more than 10 kilograms
- fish or fish products for export to New Zealand.

Please note, seaweed is not considered a fish product.

## Plants and plant products

Plants and plant products including: prescribed grain, hay, straw, and all fresh fruits and vegetables (including mushrooms, herbs and sprouts) are prescribed. Prescribed grain includes barley, canola, chickpeas, dried field peas, faba beans, lentils, lupins, mung beans, oats, sorghum, soybeans, wheat and whole vetch. Additionally, any other plant or plant products that are intended for export and requiring a phytosanitary certificate to meet an importing country requirement are also prescribed.

All other plant and processed plant products are non-prescribed goods.

## Eggs and egg products

Eggs and egg products from the avian species *Gallus gallus* (chickens) that are intended for export are prescribed. An egg product means the contents of an egg removed from its shell and in liquid, frozen or dried form.

Eggs and egg products that are considered non-prescribed include:

- eggs and egg products from an avian species other than *Gallus gallus* (such as emu or duck eggs)
- eggs or egg products that are for use as animal food or pharmaceutical material
- products where eggs [are used as an ingredient in a food even if they are the major component, such as omelettes, frittatas, mayonnaise and pavlova shells](#)
- liquid egg products exported in a consignment of not more than 10 litres
- eggs and egg products of any other kind exported in a consignment of not more than 10 kilograms
- egg products in the form of a tablet or capsule.

## Meat and meat products

Meat and meat products derived from an animal of the bovine, bubaline, camelidae, caprine, cervidae, ovine, porcine or soliped species and that are intended to be exported as food are prescribed. Animals in these species include cattle and bison, water buffalo, camels, goats, deer, sheep, pigs, and horses and donkeys.

Meat and meat products that are considered non-prescribed include:

- soup, soup powder or soup concentrate derived from meat
- meat extracts
- tallow or gelatine derived from meat
- regenerated collagen products derived from meat
- meat or meat products that are animal food or pharmaceutical material
- meat products containing less than 5% mass of meat
- meat or meat products for export in a consignment of not more than 10 kilograms
- meat or meat products that are animal food
- meat or meat products that are pharmaceutical material
- meat or meat products for export to New Zealand for consumption in New Zealand.

## Wild Game Meat and Wild Game Meat Products

Wild game meat or wild game meat products derived from a wild game animal that are intended to be exported as food are prescribed. Examples of wild game animals are kangaroos (macropod animals), wild boar (porcine animals), feral goats (caprine animals), rabbits (lagomorph animals) and deer (cervid animals).

Wild game meat or wild game meat products that are considered non-prescribed include:

- soup, soup powder or soup concentrate derived from wild game meat
- wild game meat extracts
- tallow derived from wild game meat
- gelatine derived from wild game meat
- regenerated collagen products derived from wild game meat
- wild game meat products containing less than 5% mass of wild game meat
- wild game meat or wild game meat products for export in a consignment of not more than 10 kilograms
- wild game meat or wild game meat products that are animal food
- wild game meat or wild game meat products that are pharmaceutical material
- wild game meat or wild game meat products for export to New Zealand for consumption in New Zealand.

# **Rabbit and Ratite Meat and Rabbit and Ratite Meat Products**

Rabbit meat, ratite meat, rabbit meat products or ratite meat products that are intended to be exported as food are prescribed.

Rabbit meat, ratite meat, rabbit meat products or ratite meat products that are considered non-prescribed include:

- soup, soup powder or soup concentrate derived from rabbit meat or ratite meat
- rabbit meat extracts or ratite meat extracts
- tallow derived from rabbit meat or ratite meat
- gelatine derived from rabbit meat or ratite meat
- regenerated collagen products derived from rabbit meat or ratite meat
- rabbit meat products containing less than 5% mass of rabbit meat
- ratite meat products containing less than 5% mass of ratite meat
- rabbit meat, ratite meat, rabbit meat products or ratite meat products for export in a consignment of not more than 10 kilograms
- rabbit meat, ratite meat, rabbit meat products or ratite meat products that are animal food
- rabbit meat, ratite meat, rabbit meat products or ratite meat products that are pharmaceutical material
- rabbit meat, ratite meat, rabbit meat products or ratite meat products that are animal food
- rabbit meat, ratite meat, rabbit meat products or ratite meat products that are pharmaceutical material
- rabbit meat, ratite meat, rabbit meat products or ratite meat products for export to New Zealand for consumption in New Zealand.

## **Poultry Meat and Poultry Meat Products**

Poultry meat or poultry meat product that are intended to be exported as food are prescribed. Poultry includes fowl, ducks, geese, turkeys, pigeons, pheasants, quail, guinea fowl and other avian species ordinarily consumed as food but does not include ratites (emu or ostrich).

Poultry meat or poultry meat products that are considered non-prescribed include:

- soup, soup powder or soup concentrate derived from poultry meat
- poultry meat extracts
- tallow derived from poultry meat
- gelatine derived from poultry meat
- regenerated collagen products derived from poultry meat
- poultry meat products containing less than 5% mass of poultry meat
- poultry meat or poultry meat products for export in a consignment of not more than 10 kilograms
- poultry meat or poultry meat products that are animal food

- poultry meat or poultry meat products that are pharmaceutical material
- poultry meat or poultry meat products for export to New Zealand for consumption in New Zealand.

## Organic goods

All food, fibre, or any other products that are described and/or labelled as organic, bio-dynamic, ecological, or by any other word of similar indication, are prescribed goods. Organic produce which is not also prescribed by commodity specific rules may be eligible for NPG export certification to meet non-organic related importing country requirements.

Organic goods that are cosmetic products are non-prescribed unless the goods are intended for export and need an organic goods certificate to meet an importing country requirement.

Other goods that are considered as non-prescribed for the purpose of export include:

- animal by-products
  - wool
  - feathers
  - goat hair
  - skins, hides and pelts
  - leather
  - trophies (such as those made of animal skins, hides and feathers)
  - inedible blood and blood products, such as serum and antisera
  - rendered meals
  - rendered fats and oils (of plant or animal origin)
  - rendered fish products
  - gelatine and gelatine products
  - deer antler velvet
  - hard antlers
  - animal placenta and placenta products
  - bones
  - collagen
- processed foods, beverages, and ingredients
  - all processed foods and grocery items that do not fall within the specifications of a prescribed good
- vitamins and nutritional supplements
- honey and apiary products
  - such as honey, honeycomb, beeswax, honeybee collected pollen, propolis, royal jelly and bee venom
- water
- cosmetics and cosmetic materials
- technical products (such as for laboratory use)
- shells (such as abalone, scallop and trochus)

- fertilisers (derived from plant or animal materials) Human and animal remains.

## **Animal vaccine and veterinary medicine**

Any certification request for animal vaccine and veterinary medicine should be referred to the Australian Pesticides and Veterinary Medicines Authority ([APVMA](#)), in the first instance. APVMA issues export certification for registered and un-registered vaccine and veterinary medicines.

## **Human vaccine and human therapeutics**

Human vaccine and therapeutic products requiring certification should be referred to the Therapeutic Goods Administration ([TGA](#)), in the first instance. The TGA can issue export certification for a product that is registered, listed, included or exempt from the Australian Register of Therapeutic Goods. Certification relating to the therapeutic nature of the product should be referred to the TGA whilst matters relating to certification of animal health conditions should be referred to the department.

## **Australian wine**

Certification requests for wine exports should be referred to [Wine Australia](#).

## **Non-prescribed goods requiring a certificate of origin**

[The Australian Chamber of Commerce and Industry](#) is authorised by the Australian Government to issue Certificates of Origin for Australian businesses, both for ordinary trade and for Australia's free trade agreements.

Certain product types are not captured under export legislation. The department can only provide certification for these goods in certain situations.

Contact the Non-prescribed Goods Export Program at [NPGExports@aff.gov.au](mailto:NPGExports@aff.gov.au) for further information.

Finding out whether the product you wish to export is a non-prescribed good is not always simple. Where it is unclear, contact the [department's nearest regional office](#). Where a product has not been exported from Australia before, or where a more thorough assessment is required to determine whether the product is a non-prescribed good, contact the Non-prescribed Goods Export Program at [NPGExports@aff.gov.au](mailto:NPGExports@aff.gov.au) for an assessment.

If your product is a non-prescribed good, you will need to determine the import requirements of the country you wish to export to. As explained above, Australia's export legislation does not include legislative requirements that must be met by an exporter before the goods can be exported. This means non-prescribed goods only need to meet the importing country requirements.

Where known, the department outlines importing country requirements in the Manual of Importing Country Requirements (Micor) database. Not all products to all markets can be found in Micor. An importing country may have requirements to allow importation of these products but, unfortunately, the department might not have the specific information on what these requirements are. It is the

exporter's responsibility to check with their importer or customer the requirements and/or documents stated by the importing country authorities in order to clear shipments of their products upon arrival. This should be done well in advance of any planned shipments, as failing to meet importing country requirements may result in products being detained or rejected at the exporter's commercial risk.

If an importing country requires certification for non-prescribed goods, exporters may apply for a government certificate. All applications for an export certificate for a non-prescribed good must be made via NEXDOC, EXDOC (the department's electronic export document systems) or on a manual application form.

Note that non-prescribed goods do not require an export permit. Previously, under the Export Control Act 1982 animal, food and pharmaceutical material were prescribed goods and as such required an export permit. Under the Export Control Act 2020, as of 28 March 2021, animal food and pharmaceutical material are non-prescribed goods and therefore do not require an export permit.

A letter of free sale may be required for registering non-prescribed goods with an importing country authority prior to export. These can be obtained from a Chamber of Commerce. If the importing country requires a letter of free sale to be issued by Australia's competent authority (the department) please contact the Non-prescribed Goods Export Program at [NPGExports@aff.gov.au](mailto:NPGExports@aff.gov.au).

## Useful links

## Contact

Non-prescribed Goods Export Program  
Residues and Food Branch  
Exports and Veterinary Services Division  
Department of Agriculture, Fisheries and Forestry  
Phone: 1800 900 090  
GPO Box 858, Canberra ACT 2601

Email: [NPGExports@aff.gov.au](mailto:NPGExports@aff.gov.au)

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/non-prescribed-goods/exporters/determining-non-prescribed-good>